

Item No. 02

Court No. 1

**BEFORE THE NATIONAL GREEN TRIBUNAL
PRINCIPAL BENCH, NEW DELHI**

Original Application No. 84/2025
(I.A. No. 142/2025)

Akhilesh Kumar

Applicant

Versus

State of Uttar Pradesh & Ors.

Respondent(s)

Date of hearing: 03.03.2025

**CORAM: HON'BLE MR. JUSTICE PRAKASH SHRIVASTAVA, CHAIRPERSON
HON'BLE DR. A. SENTHIL VEL, EXPERT MEMBER
HON'BLE DR. AFROZ AHMAD, EXPERT MEMBER**

Applicant: Mr. Gaurav Kumar Bansal, Ms. Nandita Bansal & Ms. Chandrika
Upadhya, Advs.

ORDER

1. In this Original Application the Applicant has questioned the decision of the State Environment Impact Assessment Authority (SEIAA), UP dated 17.12.2024 in respect of the mining activities at Arazi No. 15 Cha, Khand No. 02, village Bhagwa, Tehsil – Obra, District Sambhal, Uttar Pradesh. The submission of the Counsel for the Applicant is that in respect of this very Arazi number earlier OA No. 109/2024 was filed raising the grievance of forgery in filling up Form-I by the Project Proponent and also the grievance that the Joint Committee was formed by the SEAC which was not submitting the report on account of some pressure. Accordingly, The Tribunal by order dated 29.01.2024 had directed the joint Committee constituted by the SEAC to submit a copy of the report before the Tribunal.

2. He has referred to the report of the Joint Committee dated 02.01.2024 (page 433) and has submitted that the Joint Committee constituted by SEAC had opined that there was very low possibility of occurrence of mineral deposit during

the floods and no mineral could be excavated from the waterbody submerged area.

He has relied upon the following recommendations of the Joint Committee:-

- “1. At the time of site visit it was observed that the mining lease is plain/soil land with flora in which, agriculture was being done by local farmers. (Photographs of the farming attached).
2. The lease is located in the outer reach of the rear end of river bank, due to which there is very low possibility of the occurrence of mineral deposit during floods in future and makes it unsustainable from mining point of view.
3. There are water bodies in the lease area at the time of inspection, hence no mineral can be excavated from the water bodies/submerged area. No mineable mineral (morrum) was observed in the lease area at the time of physical inspection.”

3. He further submits that the issue was considered in OA 109/2024 by the Tribunal on 01.04.2024 when the Tribunal had appointed a Joint Committee which had submitted the report dated 15.07.2024 recommending the Grid base survey of the leased area. He has relied upon the following recommendations of the joint Committee constituted by the Tribunal:-

“The joint committee recommends that a grid-based survey of the lease area regarding sand/morrum reserve in the lease area may be carried out by Project Proponent through a reputed expert institute and reviewed by SEIAA, Uttar Pradesh, to provide grid wise details about layers of earth and sand/morrum. The red line level i.e. the level below which mining not to be carried out may also be fixed by the survey to enable proper estimation of annual replenishment and permissible mining in subsequent years.”

4. He further submits that the Tribunal by order dated 25.11.2024 had disposed of the OA 109/2024 permitting the Applicant to place before the SEIAA, UP of the report of the Joint Committee which he was relying upon and had directed SEIAA, UP to consider the said report before the issuance of EC. He has submitted the issue was considered by the SEAC in its meeting dated 03.12.2024 wherein SEAC had made the recommendations for approval of rest 26 leases except the lease in question. He has relied upon the following recommendations of the SEAC in its meeting dated 13.12.2024:-

“Observing the above reports as well as the Sand Management Guidelines – 2016 & Enforcement and Management Guidelines

for Sand Mining – 2020 which provide a framework for sustainable sand and gravel mining, the committee recommends to approved rest 26 leases mentioned in the proposed DSR except the lease mentioned in Serial No. 20 (Gata No. 15 Cha, Khand No. 02, Village Bhagwa, Tehsil- Obra, District- Sonebhadra) of the District Survey Report (DSR) of District-Sonebhadra along with following conditions:

- 1. The District Survey Report (DSR) shall be updated once in five years as mentioned in MoEF&CC, Govt. of India Notification No. S.O. 141(E), dated 15/01/2016, as per laid down procedure, under intimation to SEIAA.*
- 2. 26 mining lease areas are approved in the final District Survey Report.*
- 3. If any new lease is identified, Sub-Divisional Committee will follow the entire procedure every time on the basis of existing DSR.*
- 4. After approval of DSR from SEIAA, the District Administration shall upload the DSR in public domain along with Lease Wise Digital Maps showing the status of deposits and pillar wise coordinates of existing and proposed areas.*
- 5. The District Administration shall utilize the District Mineral Foundation Funds as per notification no. 866/86-2017-132/2016 dated 15/05/2017 issued by Department of Geology and Mining, Government of U.P. or any modification in it by competent authority.*
- 6. DMF fund should also be utilized for the environmental protection, development and maintenance of haulage road.*
- 7. The lease shall periodically conduct audits of operative mine leases and take corrective measures as per the directions of District Administration in case of adverse observations and, a yearly report on this shall be sent to SEIAA as compliance.”*

5. He has already submitted that inspite of the above recommendations of the SEAC and the order of the Tribunal, SEIAA and in its meeting dated 17.12.2024 had formed its own joint Committee and directed the Joint Committee to examine the area based on ocular as well as soil profile examination and submit the report. He has raised grievance against the following part of the Minutes of the Meeting of the SEAC dated 17.12.2024:-

“SEIAA noticed that the reports dated 15.03.2024, 05.07.2024 and 27.09.2024 do not address the question of mineral availability at the site. Hence SEIAA agreed to refer the matter to DM, Sonebhadra to get it examined by a committed of Mining Officer, Sonebhadra, a representative of DM Sonebhadra, not below the rank of ADM, and a soil scientist belonging to a reputed agriculture university of State or the Center. The Committee shall examine the area based on ocular as well as soil profile examination and

photographs and videos should be attached with the report. The report shall be submitted within three weeks. SEIAA should be apprised of the action taken.”

6. He submits that in terms of the judgment of the Hon’ble Supreme Court in the matter of The State of Bihar & Ors. v. Pawan Kumar & Ors. dated 10.11.2021 the SEAC ought to have directed for use of modern technology. Referring to the clause 8(2) of the EIA Notification dated 2006, he has submitted if there was a conflict in the views of the SEAC and SEIAA then SEIAA instead of forming a Joint Committee ought to have referred the matter back to the SEAC with due reasons. He submits that though no mineable mineral exists in the said lease area yet the SEIAA is in the process of issuing the lease for that area.

7. Issue notice to the Respondents for filing their reply by way of affidavit.

8. The Applicant is directed to serve the Respondents and file affidavit of service at least one week before next date of hearing.

9. List on 30.05.2025.

Prakash Shrivastava, CP

Dr. A. Senthil Vel, EM

Dr. Afroz Ahmad, EM

March 03, 2025
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